court sentenced Geelani, Shaukat and Afzal to death. Afsan Guru was sentenced to five years of Rigorous Imprisonment. The High Court subsequently acquitted Geelani and Afsan, but it upheld Shaukat's and Afzal's death sentence. Eventually, the Supreme Court upheld the acquittals, and reduced Shaukat's punishment to 10 years of Rigorous Imprisonment. However, it not just confirmed, but enhanced Mohammed Afzal's sentence. He has been given three life sentences and a double death sentence.

In its 5 August 2005 judgment, the Supreme Court clearly says that there was no evidence that Mohammad Afzal belonged to any terrorist group or organization. But it also says, 'As is the case with most of the conspiracies, there is and could be no direct evidence of the agreement amounting to criminal conspiracy. However, the circumstances cumulatively weighed would unerringly point to the collaboration of the accused Afzal with the slain "fidayeen" terrorists.'

So: No direct evidence, but yes, circumstantial evidence.

A controversial paragraph in the judgement goes on to say: 'The incident, which resulted in heavy casualties, had shaken the entire nation, and the collective conscience of the society will only be satisfied if capital punishment is awarded to the offender. The challenge to the unity, integrity and sovereignty of India by these acts of terrorists and conspirators can only be compensated by giving maximum punishment to the person who is *proved to be* the conspirator in this treacherous act.' [Emphasis mine.]

To invoke the 'collective conscience of society' to validate ritual murder, which is what the death penalty is, skates precariously close to valorizing lynch law. It's chilling to think that this has been laid upon us not by predatory politicians or sensation-seeking journalists (though they too have done that), but as an edict from the highest court in the land.

Spelling out the reasons for awarding Afzal the death penalty, the judgment says, 'The appellant who is a surrendered militant and who was bent upon repeating the acts of treason against the nation, is a menace to the society and his life should become extinct.'

This paragraph combines flawed logic with absolute ignorance of what it means to be a 'surrendered militant' in Kashmir today.

So: Should Mohammad Afzal's life become extinct?